

[117 a] PINNELL'S CASE.

Trin. 44 Eliz. Rot. 501.

In the Common Pleas.

[Followed, *Foakes v. Beer*, 1884, 9 App. Cas. 605; *Bidder v. Bridges*, 1887, 37 Ch. D. 413.]

Payment of a less sum on the day in satisfaction of a greater, cannot be any satisfaction for the whole. The gift of a horse, hawk, robe, &c. in satisfaction, is good. Payment of part before the day, and acceptance, may be in satisfaction of the whole; so payment of part at a different place.

The payment of part ought to be pleaded to be paid in full satisfaction; it is not sufficient to aver that it was accepted in full satisfaction.

The manner of the tender, and of the payment, shall be directed by him who made them, not by him who accepts.

An acknowledgment of satisfaction by deed, is a good bar, without any thing received. S. C. Moor. 677.

See 3 Cases in Law, &c. 304. Lucas 224. 304.

Pinnel brought an action of debt on a bond against Cole, of 16l. for payment of 8l. 10s. the 11th day of Nov. 1600. The defendant pleaded, that he at the instance of the plaintiff, before the said day, *scil.* 1 Octob. anno 44. *apud W. solvit querenti 5l. 2s. 2d. quas quidem 5l. 2s. 2d.* the plaintiff (a) accepted in full satisfaction of the 8l. 10s. And it was resolved by the whole Court, that payment of a lesser sum on the day in satisfaction of a greater, cannot be any satisfaction for the whole, because it appears to the Judges that by no possibility, (b) a lesser sum can be a satisfaction to the plaintiff for a greater sum (A): but the gift of a horse, (c) hawk, or robe, &c. in satisfaction is good. For it shall be intended that a horse, hawk, or robe, &c. might be more beneficial to the plaintiff than the money, in respect of some circumstance, or otherwise the plaintiff would not have accepted of it in satisfaction. But when the whole sum is due, by no intendment the acceptance of (a) parcel can be a satisfaction to the plaintiff: but in the case at Bar it was resolved, that the payment

(a) Doct. pl. 267. Bac. Ab. Accord. & Sat. A.

(b) Perk. sect. 749. Co. Lit. 212. b.

(A) So acceptance of a security for a lesser sum cannot be pleaded in satisfaction of a similar security for a greater. *Cumber v. Wane*, 1 Strange, 426. and per Lord Ellenborough, *Fitch v. Sutton*, 5 East, 232.; "though that case was said by me in argument, in *Heathcote v. Crookshanks*, to have been denied to be law, and in confirmation of that Mr. Justice Buller afterwards referred to a case, yet I cannot find any case of that sort, and none has now been referred to: on the contrary, the decision in *Cumber v. Wane* is directly supported by the authority of *Pinnell's case*, which never appears to have been questioned."

Although if a creditor simply agree to accept less from his debtor than his just demand, that will not bind him; yet if upon the faith of such an agreement, a third person is induced to become surety for any part of the debts, on the ground that the party will be thereby discharged of the remainder of his debts, and still more when other creditors have been induced by the agreement to relinquish their further demands, upon the same supposition such agreement will be binding. *Steinham v. Magnes*, 11 East, 394.; and *vid.* Com. Dig. Accord. Bac. Ab. Accord and Satisfaction. Note (c) *Barber v. Fox*, 2 Saund. 137. e. 5th edition.

(c) 9 Co. 79. a. Perk. sect. 749. Co. Lit. 212. b. Yelv. 11. 1 Bulstr. 66. Cr. El. 46. 193. Cr. Jac. 254.

(a) Co. Lit. 212. b. 215. Yelv. 11. Perk. sect. 749. Dall. 49. pl. 13. Moor 49. Lutw. 466.

and acceptance of parcel before the (b) day in satisfaction of the whole, would be a good satisfaction in regard of circumstance of time; for peradventure parcel of it before the day would be more beneficial to him than the whole at the day, and the value of the satisfaction is not material: so if I am bound in 20l. to pay you 10l. at Westminster (c) and you request me to pay you 5l. at the day at York, and you will accept it in full satisfaction of the whole 10l. it is a good satisfaction [117 b] for the whole: for the expences to pay it at York, is sufficient satisfaction: but in this case the plaintiff had judgment for the insufficient pleading; for he did not plead that he had paid the 5l. 2s. 2d. in full (d) satisfaction (as by the law he ought) but pleaded the payment of part generally; and that the plaintiff (e) accepted it in full satisfaction (b). And always the manner of the tender and of the payment shall be directed (f) by him who made the tender or payment, and not by him who accepts it (c). And for this cause judgment was given for the plaintiff.

See reader (g) 26 H. 6. Barre 37. in debt on a bond of 10l. the defendant pleaded, that one F. was bound by the said deed with him, and each in the whole, and that the plaintiff had made an acquittance to F. bearing date before the obligation, and delivered after, by which acquittance he did acknowledge himself to be paid 20s. in full satisfaction of the 10l. And it was adjudged a good bar; for if a man acknowledges himself to be satisfied by (h) deed, it is a good bar, without any thing received. *Vide* 12 R. 2. Barre 243. 26 H. 6. Barre 37. and 10 H. 7, &c.

[118 a] EDRICH'S CASE.

Pasch. 1 Jacobi 1.

In the Common Pleas.

[See *Latter v. White*, 1870-72, L. R. 5 Q. B. 637; L. R. 5 H. L. 578;
David v. Subin [1893], 1 Ch. 537.]

A. seised in fee of land, devised a rent to B. for the life of C., with clause of distress, and died. The heir leased the land to D. for life, the remainder in fee to E. D. died, and afterwards C. died. B. the tenant *pur autre vie* of the rent may, by 32 H. 8. c. 37. distrain him on the remainder for the arrears incurred in the life of D.

10 Co. 68. a. Lit. Rep. 93. Co. Lit. 162. b.

Between Edrich and Smith in replevin, a case was adjudged on the last clause of the stat. of 32 H. 8. c. 37. and the case was such; A. seised in fee of land held in socage, by his will in writing devised a rent, with clause of distress to B. for the life

(b) Moor 677. Co. Lit. 212. b. Cr. El. 304.

(c) Moor 678. Cr. El. 304. Co. Lit. 212. b. 5 Mod. 86.

(d) 9 Co. 80. b. Doct. pl. 19. Winch. 76. Style 263.

(e) Doct. pl. 267. Cr. El. 193. Style 263.

(b) That the sum must be pleaded to have been given in full satisfaction, *vid. Frederick v. Gosfright*, Carth. 237.; and also to have been accepted in full satisfaction, *vid. Drake v. Mitchell*, 3 East, 256., and *vid. post. Peytoe's case*, 9 Co. 80 b. { *Francis v. Crywell*, 5 Barn. and Ald. 886.

(f) Cr. El. 68. 2 Brownl. 107, 108. Style 239.

(c) Where there are distinct accounts and a general payment, and no appropriation made at the time of such payment by the debtor, the creditor may apply such payment to which account he pleases; but where payments are made upon one entire account such payments are to be considered as payments in discharge of the earlier items. *Clayton's case*, 1 Meriv. 605. *Bodenham v. Purchas*, 2 Barn. & Ald. 39.

(g) 9 Co. 79. b. Dall. 49. pl. 13.

(h) Doct. pl. 267. Co. Lit. 212. b. Dall. 49. pl. 13. Moor 47, 48. acc. 5 East, 232.